



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

July 15, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202100334 regarding Police Officer Vinicio Vincenty, Tax No. 945405 (DADS No. 2022-25907)

Dear Mr. Darche:

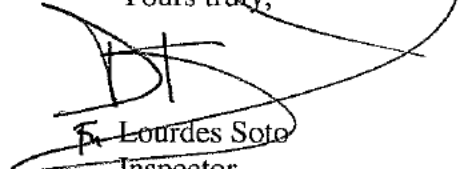
The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Police Officer Vincenty will receive no disciplinary action rather than a Schedule "B" Command Discipline. In this case, the actions of Police Officer Vincenty do not rise to the level of misconduct where an imposition of a Schedule "B" Command Discipline is warranted.

The first statement made by Police Officer Vincenty directing a third-party to vacate the immediate area where police operations were being conducted was, *in the present case*, not aimed as a threat to arrest and should not be perceived as such. Rather, *in this case*, it was deployed as a legitimate police tactic aimed at diffusing a potentially volatile situation. Additionally, given the facts of *this* case, the second statement made by Police Officer Vincenty, while inappropriate, was not discourteous and thus does not warrant an imposition of a command discipline.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Vincenty will receive no disciplinary action for the alleged violation of Patrol Guide Procedure 208-01 (Law of Arrest/Threat) and New York State Penal Law §195.05 (Obstructing Governmental Administration).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office